MASTER SERVICES AGREEMENT

This Master Services Agreement ("MSA") is effective as of the date of the last signature on the signature page hereto (the "Effective Date") by and between SEARS, INC. ("Sears") and ABODE NETWORKS, INC. ("Contractor"). Sears and Contractor may be referred to herein each as a "Party" and collectively as the "Parties". In consideration of the mutual promises, representations, warranties and covenants contained in this MSA, the receipt and sufficiency of which is hereby acknowledged, the Parties agree as follows:

1. SCOPE OF AGREEMENT.

(a) Services. Contractor will provide services to Sears (the "Services") as described in a written Statement of Work ("SOW") signed by both Parties. Each such "Statement" means this MSA together with any SOWs, Change Orders or Purchase Orders (each as defined below) entered into hereunder.

(b) Statements of Work. To request Services from Contractor, Sears will issue a SOW to Contractor describing the Services that Contractor is obligated to furnish to Sears, including all expected specifications, requirements and deliverables, and the timelines for provision of the Services. Each SOW will be signed by Sears and by Contractor and will be subject to this MSA. In the event of any conflict between the terms of a SOW and this MSA, this MSA will control unless the Parties mutually agree in writing to specific terms and conditions concerning the requested Services, including without limitation, the first specific provision to the Services that "SOW Term") and the schedule for performance.

(c) Acceptance Criteria. Each SOW will describe the acceptance criteria that must be met for Services ("Acceptance Criteria"). Contractor's completion criteria to signify completion of each phase of a project, if necessary. Sears shall review, evaluate and/or test to be reasonably satisfied that the Services meet the Acceptance Criteria and conform with the Documentation. Sears will notify Contractor in writing with respect to each item that "Acceptance Rejection") to determine in its sole discretion whether the Services meet the applicable Acceptance Criteria and conform with the Documentation". The date on which an item is acknowledged by Sears in writing to be in accordance with the Acceptance Criteria is the "Acceptance Date". Contractor will correct any Services that do not meet the Acceptance Criteria within five (5) days for all Services provided to Sears's representative acceptance hereunder. Further, any item that by Sears prior to the Acceptance Date shall not constitute Sears's acceptance of such Services.

(d) Change Orders. Either Party may request changes to a SOW after it has been executed, provided that a Change Order prepared in accordance with this Section and **Exhibit A** hereto is approved in writing by both Parties before it is effective. An email explicitly acknowledging acceptance of a Change Order by an authorized representative of a Party will be sufficient to constitute approval of such changes under this MSA. Each Change Order will constitute a written Statement of Work. Contractor will prepare each Change Order with a description of the change in Services, including the change, if any, to the SOW Term, and (iii) the change, if any, in the schedule for performance of the Services. Contractor will deliver each Change Order to Sears for Sears's review and approval. Contractor will not perform any change in the revised Services to be provided in the Change Order until Sears has approved the Change Order.

(e) Order of Precedence. In the event of any conflict or ambiguity between any terms of this MSA and a SOW or Change Order, the terms of this MSA will control, unless the SOW or Change Order specifically identifies the section of this MSA that it is intended to supersede. Any reference in this MSA or a SOW to a Change Order shall specifically identify the section of this MSA that it is intended to supersede. (ii) this MSA specifies that a term or terms of the SOW control, or (iii) the SOW or Change Order is signed or acknowledged by both Parties and specifically identifies the section of this MSA that it is intended to supersede. Any terms and conditions in this MSA of (i) Contractor's or Sears Company's representative or representatives and Contractor shall not be deemed or other provisions of this MSA.

2. COMPENSATION AND PAYMENT.

(a) Invoicing. Sears will pay Contractor only the amounts specified in each SOW or PO. Unless a SOW specifies alternative payment terms, Contractor will invoice Sears for Services on a monthly in arrears, and Contractor will invoice Contractor within [TWO] months of the Company acceptance of the Services, milestone or deliverable at the receipt of a correct invoice. Company will not pay for work performed or Services provided before the effective date of a SOW. Contractor will prepare in writing (via hard copy or email) and invoices with sufficient detail for Sears to verify the charges.

(b) Expenses. Sears has no obligation to reimburse Contractor for travel expenses under this Agreement. Sears will only reimburse Contractor for expenses that are specifically identified and approved in advance in a written amendment to a SOW. Sears will not be obligated to credit card reasonable receipt, full documentation, and approval in accordance with Sears's then-current travel and expense policy.

3. SUBCONTRACTORS. Contractor shall not utilize any subcontractor or agent to perform any of Contractor's obligations hereunder without first obtaining Sears's written consent. Sears may withhold its consent to any subcontractor or agent in its sole discretion. Contractor shall ensure that any subcontractor or agent it utilizes to perform any of its obligations hereunder complies with the terms of this MSA, and Contractor shall be responsible for any failure by any subcontractor or agent to perform in accordance with this MSA. Sears's use of subcontractors or agents. Nothing in this MSA or any SOW shall be construed to authorize any subcontractor or agent to act as an agent for any part of Sears by any or to the payment of any amounts to any subcontractor or agent.

4. ITEMS. Sears retains all right, title and interest in and to the Sears Materials. Subject to the terms of this Agreement, Sears hereby grants to Contractor a limited, nonexclusive, non-transferable, non-sublicensable, revocable right to use the Sears Materials solely for the purpose of providing the Services to Sears during the Term. Contractor shall not (i) sell, assign, transfer, lease, rent, sublicense, or otherwise grant any rights in the Sears Materials in any form to any third party, (ii) use or exploit the Sears Materials for the benefit of any third party, or (iii) use the Sears Materials beyond the extent specifically authorized in this MSA or any SOW. Contractor shall not remove, modify or obscure any boilerplate, boilerplate, boilerplate,